

TENTATIVE RULINGS

DEPT CX102

Judge Layne H. Melzer

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the court's policy on the use of privately retained court reporters which can be found on the court's website at [Court Reporter Services | Superior Court of California | County of Orange](#).

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5302. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

APPEARANCES: Department CX102 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75, California Rule of Court (CRC) 3.672 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at [Civil Remote Hearings | Superior Court of California | County of Orange](#) prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available on the website. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") contained on the Court's website will be strictly enforced. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

PUBLIC ACCESS: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

TENTATIVE RULINGS**6/4/2026****02:00 PM**

100	Rojo vs. Farwest Insulation Contracting, a California corporation 2022-01259062	Final Accounting The Final Accounting hearing is CONTINUED to September 3, 2026, at 2:00 p.m. in Department CX102 so that the parties can address the issues identified below. On March 27, 2025, the court granted the Motion for Final Approval (ROA 222), and the Order Granting Final Approval and Entering Judgment was entered on April 10, 2025 (ROA 228). The approved disbursements from the Gross Settlement Amount of \$800,000.00 included: • \$280,000 attorneys' fees (\$140,000 to Parker & Minne, LLP, and \$140,000 to Lawyers for Justice, PC) • \$12,411.94 litigation costs (\$566.26 to Parker & Minne, LLP and \$11,845.68 to Lawyers for Justice, PC) • \$7,950 to ILYM Group, Inc. for administration costs • \$7,500 enhancement award to plaintiff Juan Rojo The Net Settlement Amount payable to Class Members was \$492,138.06. ROA 228; see also ROA 204. The Order and Judgment Amending the April 22, 2025 Final Approval Order was entered on 11-04-2025. ROA 276. It states that forty-nine (49) individuals were inadvertently omitted from the original Class List and that thirteen (13) Class Members had their workweeks undercounted. Id. The Order also addresses the deposit of additional funds to the Gross Settlement Amount (\$198,907.26), which included \$187,224.45 in net settlement funds to be paid to Omitted Class Members and Supplemental Check Members, \$7,432.81 in employer side payroll taxes, and \$4,250.00 in administration fees to be paid to ILYM. Id. ¶ 9. The order also includes the following: "The court orders that at the time of the final accounting that Class Counsel transmit a copy of this order and the final judgment and the final accounting to the Judicial Council. (CCP 384.5; Govt Code 68520.)." Id. ¶ 15. 1. The administrator's 10-14-2025 and 05-12-2026 declarations only purport to address the additional funds, i.e., the 49 omitted class members and the 13 class members whose work weeks were undercounted. ROA 263, 284. In other words, neither declaration addresses the original \$800,000 GSA and the administrator has failed to provide any report addressing the full and final disbursement of those funds. 2. The administrator does not indicate the disposition of the \$7,432.81 that was part of the additional payment for payroll taxes. ROA 284. The administrator reports taxes were paid in the amounts of \$16,213.64 and \$5,242.28, but does not explain the source of those funds.
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		3. As to the additional payments to the class, the declaration is dated the same day as the check cashing deadline, and \$10,098.37 remains in the administrator's custody. ROA 284 ¶ 9. Accordingly, even if the \$800,000 GSA had been fully and finally disbursed, the additional funds portion of the settlement is not fully and finally disbursed, and the court's file cannot be closed. 4. Plaintiff has also failed to comply with the order and judgment in that the court ordered "at the time of the final accounting that Class Counsel transmit a copy of this order and the final judgment and the final accounting to the Judicial Council. (CCP 384.5; Govt Code 68520.)." ROA ¶ 276 15. No such proof of service has been filed. Plaintiff shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the continued hearing. The final report must include all information necessary for the Court to determine the <i>total</i> amount of the settlement funds actually paid to all Class Members, the number of uncashed checks, the amount of unclaimed funds, if any, and the amount remitted to the State Controller's Office Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, counsel must request a continuance or the court will set an OSC re: sanctions. Plaintiff is ordered to give notice of this ruling and file proof of service.
101	Medero vs. Norada Capital Management 2024-01445239	Motion to Appear Pro Hac Vice The Application of Thomas Kimble for Admission to Appear Pro Hac Vice filed by various Norada Company Defendants and Defendant Marco Santarellis CONTINUED to July 2, 2026, at 2:00 p.m. in Department CX102 so counsel can address the following defect: Actual proof of service on, and proof of payment to, the State Bar of California has not been provided. Supplemental or amended papers must be filed no later than fourteen (16) calendar days prior to the continued hearing. Moving party is ordered to give notice of this ruling and file proof of service within five (5) court days.
102	Hernandez vs. Big Canyon Country Club 2025-01485840	1. Case Management Conference 2. Motion to Compel Arbitration CMC CONTINUED AND MTC HEARING VACATED

103	Garibay Silva vs. Nieves Landscape, Inc., a California corporation 2025-01500937	1. Case Management Conference 2. Motion to Compel Arbitration CMC CONTINUED AND MTC HEARING VACATED
105	CARMONA vs. ARROWHEAD PRODUCTS CORPORATION 2022-01295275	1. Motion Other To Exclude Testimony re Class Cert 2. Motion to Certify Class 3. Status Conference Having read and considered the parties' Joint Case Management Conference Statement (ROA 146), it is hereby ordered that the June 4, 2026, hearing set for defendant's motion is VACATED. The CMC is continued to August 6, 2026 at 2PM in CX102. The parties shall submit a joint CMC statement 10 days in advance Clerk to give notice.
106	Quinn vs. Valley Post-Acute And Rehab LLC 2025-01518740	1. Case Management Conference 2. Motion to Compel Answers to Form Interrogatories 3. Motion to Compel Answers to Form Interrogatories 4. Motion to Compel Deposition (Oral or Written) 5. Motion to Compel Production 6. Motion to Compel Response to Requests for Admissions <u>Motion No. 1: Compel Responses to Form Interrogatories, Set One</u> Plaintiff Harvey Quinn's unopposed motion to compel defendant Valley Post-Acute and Rehab, LLC to answer without objection Form Interrogatories, Set One, is GRANTED. Responses are due within 30 days notice of this order, unless the parties agree otherwise. The court finds no substantial justification or other circumstances which make the imposition of the monetary sanctions unjust. The court awards plaintiff reasonable expenses in the amount of \$710.00, payable by defendant Valley Post-Acute and Rehab, LLC within 20 days notice of this order, unless the parties agree otherwise. C.C.P. §§ 2023.010, 2023.030.

Motion No. 2: Compel Responses to Request for Identification and Production of Documents, Set One

Plaintiff Harvey Quinn's unopposed motion to compel defendant Valley Post-Acute and Rehab, LLC to answer without objection plaintiff's Request for Identification and Production of Documents, Set One, is GRANTED. Responses are due within 30 days notice of this order, unless the parties agree otherwise.

The court finds no substantial justification or other circumstances which make the imposition of the monetary sanctions unjust. The court awards plaintiff reasonable expenses in the amount of \$710.00, payable by defendant Valley Post-Acute and Rehab, LLC within 20 days notice of this order, unless the parties agree otherwise. C.C.P. §§ 2023.010, 2023.030.

Motion No. 3: Compel Responses to Special Interrogatories, Set One

Plaintiff Harvey Quinn's unopposed motion to compel defendant Valley Post-Acute and Rehab, LLC to answer without objection plaintiff's Special Interrogatories, Set One, is GRANTED. Responses are due within 30 days notice of this order, unless the parties agree otherwise.

The court finds no substantial justification or other circumstances which make the imposition of the monetary sanctions unjust. The court awards plaintiff reasonable expenses in the amount of \$710.00, payable by defendant Valley Post-Acute and Rehab, LLC within 20 days notice of this order, unless the parties agree otherwise. C.C.P. §§ 2023.010, 2023.030.

Motion No. 4: Deem Requests for Admission, Set One, Admitted

Plaintiff Harvey Quinn's unopposed motion to deem admitted each Request for Admission, Set One, served on Defendant Valley Post-Acute and Rehab, LLC, is GRANTED.

The court finds no substantial justification or other circumstances which make the imposition of the monetary sanctions unjust. The court awards plaintiff reasonable expenses in the amount of \$1,210.00, payable by defendant Valley Post-Acute and Rehab, LLC within 20 days notice of this order, unless the parties agree otherwise. C.C.P. §§ 2023.010, 2023.030.

Motion No. 5: Compel the Deposition of Person Most Knowledgeable

Plaintiff Harvey Quinn's unopposed motion to compel the deposition of the Person Most Knowledgeable of defendant Valley Post-Acute and Rehab, LLC is GRANTED. The deposition is to take place at a mutually agreeable location within 45 days notice of this order, unless the parties agree otherwise.

The court finds no substantial justification or other circumstances which make the imposition of the monetary sanctions unjust. The court awards plaintiff reasonable expenses in the amount of \$1,210.00, payable by defendant Valley Post-Acute and Rehab, LLC within 20 days notice of this order, unless the parties agree otherwise. C.C.P. §§ 2023.010, 2023.030.

Plaintiff is ordered to give notice.

107	Aguilar vs. Vista Paint Corporation 2022-01291751	Motion for Final Approval of Class and PAGA Settlement The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of a \$1,400,000 class action and PAGA settlement. Subject to the submission of the document described below, the tentative ruling is to grant the motion as follows: \$5,000.00 for plaintiff's enhancement payment; \$420,000.00 for attorneys' fees; \$27,866.80 for litigation costs; \$11,000 for settlement administration costs; and \$40,000 total PAGA penalties (\$30,000 to LWDA). Plaintiff is ordered to submit within 10 days the administrator's supplemental declaration cited in and supporting plaintiff's responses to issue nos. 2 and 3 in the court's prior minute order. ROA 176. While counsel relies upon and states such a supplemental declaration has been filed, it has not. See ROA 183 ¶¶ 2-3 (citing "Supplemental Declaration of Taylor Mitzner with Respect to Notice and Settlement Administrator ('Supp. Admin. Decl.')." Plaintiff is ordered to submit within 10 days a proof of service showing, in detail, that all supplemental final approval moving papers were served on the LWDA. While plaintiff counsel's represents such proof of service would be "filed concurrently with the instant submission," no such filing exists. ROA 185 ¶ 3. The final accounting hearing is scheduled for June 3, 2027 at 2:00 p.m. in Department CX102. Plaintiff shall submit a final accounting report at least 16 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. If all funds are not fully and finally disbursed by the filing deadline, counsel must request a continuance. Plaintiff shall within 5 days submit a revised final order and judgment consistent with this ruling. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
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108	Davis vs. Career Networks Institute, Inc. 2024-01389974	Motion for Preliminary Approval of Class/PAGA Settlement The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff’s motion for preliminary approval of a \$825,000 class action and PAGA settlement. Upon submission of papers reflecting the revisions identified below, the motion will be granted as follows: \$10,000.00 for plaintiff’s enhancement payment (not to exceed); \$275,000.00 for attorneys’ fees (not to exceed 1/3 of gross settlement amount); \$30,000.00 for litigation costs (not to exceed); \$7,500.00 for settlement administration costs (not to exceed); and \$80,000.00 total PAGA penalties (\$60,000.00 to LWDA). 1. Were all supplemental papers served on the LWDA? Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. 2. The Miller declaration (ROA 82) is unexecuted and thus defective. An executed version must be filed. 3. Plaintiff was ordered to file a redline version of the proposed order but has failed to do so. The final approval hearing is scheduled for October 1, 2026 at 2:00 p.m. in Department CX102. The motion for final approval shall be filed at least 16 court days before the hearing. The court further refers Class Counsel to the “Guidelines for Approval of Class Action Settlements & PAGA Settlements” posted on the Court’s website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
109	Romero vs. BSH Home Appliances Corp 2024-01386303	Motion to Approve PAGA Settlement The Court has reviewed the supplemental materials provided by Plaintiff’s Counsel and finds that they fail to adequately address the previously identified issues. Accordingly, Plaintiff Christina Romero’s Motion for Approval of PAGA Settlement is CONTINUED to August 6, 2026 at 2:00 p.m. in Department CX102 in order to give Plaintiff’s counsel an opportunity to address the issues identified below. This is a PAGA-only action. On 3/18/2024, Plaintiff Christina Romero filed a PAGA complaint against Defendant BSH Home Appliances Corp. (ROA #2.) Defendant answered on 5/15/2024. (ROA #15.) The operative complaint is the first amended complaint, filed on 1/8/2025 pursuant to the parties’ stipulation and the court’s order granting leave, which alleges a single cause of action for PAGA civil penalties based on various Labor Code wage-and-hour violations. (ROA #44.) On 9/4/2025, Plaintiff filed the instant Motion for Approval of PAGA Settlement, and submitted for the Court’s review the Joint Stipulation of PAGA Settlement.

The motion seeks approval of the parties' proposed settlement of Plaintiff's PAGA claims for the non-reversionary gross settlement amount (GSA) of \$360,000.

On 1/29/2026, the Court continued the first hearing on the motion and asked Plaintiff's counsel to address various issues. (ROA #79.)

The Court has identified several issues with the supplemental papers. Accordingly, the following issues must be addressed by Plaintiff's counsel before the motion can be granted:

1. Counsel attests that following the Court's 1/29/2026 minute order, the parties entered into a First Amendment to Joint Stipulation of PAGA Settlement ("First Amendment") and that it is attached to the proposed order concurrently filed with counsel's 5/11/2026 supplemental declaration. (ROA #82, Counsel Supp. Decl., ¶ 7.) However, the concurrently filed proposed order does not include this attachment. (ROA #80.) Counsel must provide the Court with a copy of the First Amendment for review before the motion can be granted.
2. The Court concludes that an attorneys' fee award totaling \$108,000 or 30% of the GSA, constituting a 0.92 multiplier of the lodestar amount, is fair, adequate, and reasonable for a settlement of this size, including considering the action's contingent nature and the results achieved.
3. Counsel's supplemental declaration states that the administrator's "costs to administer this case are \$4,979.00," and counsel inserted this amount in the proposed cover letter to aggrieved employees and in the proposed order as the amount the Court should award for administrator costs. However, the administrator's own declaration attests that its "costs to administer the case are \$4,979. However, Simpluris has offered a courtesy client discount of \$1,000 and has agreed to administer this case for a fee of \$3,979." (ROA #82, Exh. 2 [Admin. Decl.] at ¶ 12 & Exh. C thereto.) Therefore, the Court concludes that the administrator should be awarded \$3,979 from the GSA as the Administration Expenses Payment.
4. The Court further concludes that a Plaintiff Service Payment of \$3,000 is fair, adequate, and reasonable for a settlement of this size, considering that there was nothing extraordinary about Plaintiff's contribution to the case.

Plaintiff's counsel must also provide the Court with a revised Class Notice with the following revisions:

1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order.
2. The pages should be numbered.
3. The notice/cover letter should explain how the individual payments were calculated (i.e., not just "on a proportionate basis" but pro rata according to the number of Pay Periods the Aggrieved Employee worked during the PAGA Period).
4. The notice/cover letter should describe the recipient's responsibility for any taxes payable on the amount received.

		Plaintiff’s counsel must also provide a revised Proposed Order with the following corrections and revisions: 1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order. 2. Attorney information must be deleted from the caption page. 3. As noted above, the proposed order filed at ROA #80 is missing all exhibits referenced in ¶ 1. The revised proposed order must attach all exhibits referenced. 4. In ¶ 14, the name of the administrator should be set forth in full—i.e., Simpluris, Inc. 5. In addition to stating the date on which the administrator’s final report shall be filed, counsel should propose a realistic Final Accounting hearing date, taking into account the deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The Court usually sets these hearings 9-10 months after final approval if the check-cashing deadline is 180 days. The parties must report to the Court the total amount that was actually paid to Aggrieved Employees and all others in accordance with the settlement agreement. All supporting papers must also be filed at least sixteen (16) court days before the Final Accounting hearing date. Plaintiff’s counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide red-lined versions of all revised papers, as well as an explanation of how the pending issues were resolved, with precise citation to any corrections or revisions. A supplemental declaration or brief that simply asserts the issues have been resolved or does not clearly state a specific concern has been resolved, is insufficient and will result in a continuance. Plaintiff to give notice, including to the LWDA, of this ruling, and file proof of service within five (5) calendar days.
110	Volrich vs. Affinity Group LLC 2024-01405245	Motion For Approval of PAGA Settlement The Court has reviewed the supplemental materials provided by Plaintiff’s Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiff Daniel Volrich’s Motion for Approval of PAGA Settlement is GRANTED. This is a PAGA-only action. On 6/10/2024, Plaintiff Daniel Volrich, on behalf of himself and all aggrieved employees pursuant to Labor Code § 2698, <i>et seq.</i>, filed a PAGA representative action complaint against Defendant Affinity Group LLC d/b/a Affinity Recovery. (ROA #2.) The operative complaint is the first amended complaint (FAC), filed on 7/5/2024, which alleges a single cause of action for PAGA penalties for violations of Labor Code sections 201, 202, 226(a), 226.7, 2247.3, 246, 510, 512, 1174, 1174.5, and 1194, as well as 226.3 and 558. (ROA #11.) On 9/16/2025, Plaintiff filed the instant motion for approval of the PAGA settlement, and submitted for the Court’s review the Private Attorney General Act

(Labor Code § 2698 *et seq.*) Settlement Agreement and proposed notice/cover letter to aggrieved employees that will accompany the payment to them. The motion seeks approval of the parties' proposed settlement of Plaintiff's representative PAGA claims for the non-reversionary gross settlement amount (GSA) of \$150,000.

At the first hearing on the Motion on 1/29/2026, the Court concluded that an attorneys' fee award totaling \$45,500 or 30% of the GSA, constituting a 0.85 multiplier of the lodestar amount, is fair, adequate, and reasonable for a settlement of this size, including considering the action's contingent nature and the results achieved. (ROA #55.) The Court also concludes that litigation costs should not include overhead or nonrecoverable items such as postage, and deducted from the requested amount \$21.26 for claimed postage. (*Id.*) The Court continued the Motion and asked Plaintiff's Counsel to address various issues. (*Id.*)

Counsel has submitted supplemental materials, including an Amended Private Attorneys General Act (Labor Code § 2698 *et seq.*) Settlement Agreement ("Amended Settlement Agreement") and an amended notice/cover letter to aggrieved employees that will accompany the payment to them.

Based on a review of all submissions made in support of the motion, including counsel's lodgment of Plaintiff's Individual Settlement Agreement for the Court's in camera review, the Court finds the settlement is fair and reasonable. As a result, the Court grants the Motion and approves the following disbursements and awards from the Gross Settlement Amount:

- Attorneys' fees totaling \$45,500.00 awarded to Plaintiff's Counsel, Gaines Law Corporation;
- Litigation costs totaling \$6,675.11 awarded to Plaintiff's Counsel, Gaines Law Corporation; and
- Settlement administration costs of \$2,900.00 awarded to ILYM Group, Inc.

PAGA penalties in the amount of \$95,424.89 shall be allocated as follows: seventy-five percent (75%), or \$71,568.67, payable to the Labor and Workforce Development Agency (LWDA); and twenty-five percent (25%), or \$23,856.22, payable to the Aggrieved Employees in accordance with the terms of the Amended Settlement Agreement.

The Final Accounting hearing is set for May 6, 2027, at 2:00 p.m. in Department CX102. Plaintiff's Counsel must submit the settlement administrator's final report regarding distribution of the settlement funds at least sixteen (16) court days prior to the hearing regarding the status of the settlement administration. The final report must include all information necessary for the Court to determine the total amount actually paid to Aggrieved Employees, the number of uncashed settlement checks, and the total amount of any unclaimed funds remitted to the State Controller's Office Unclaimed Property Fund. If the unclaimed funds are not fully disbursed by the report deadline, counsel must request a continuance of the Final Accounting hearing.

Plaintiff to give notice, including to the LWDA, of this ruling, and file proof of service within five (5) calendar days of the date the Order and Judgment is entered.

111	Cruz vs. Level 23 Fab Inc. 2022-01295952	Motion for Approval of PAGA Settlement The court has reviewed and considered the papers filed in support of plaintiff’s motion for approval of a \$50,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The court will not approve a settlement that permits defendant to shorten the PAGA Period and that option should be removed. ¶ 8. Plaintiff must determine the final number of applicable pay periods prior to approval, i.e., whether the escalator provision has been triggered. Id. 2. The parties should provide the estimated high and low individual PAGA payments. 3. The parties should provide plaintiff’s estimated individual PAGA payment. 4. The parties should submit a copy of plaintiff’s individual settlement agreement. 5. The “Released Parties” provision is overbroad. ¶ 1.27. It includes unrelated, ambiguous and/or unidentified third parties that should be identified or removed including “members, agents, trustees, representatives, attorneys, insurers, co-employers, reinsurers, parent companies, predecessors, successors, assigns, subsidiaries, divisions, and affiliates.” 6. Defendant should state in a declaration filed with the court whether it is aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in this case. If any such actions are known to exist, the declaration shall state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. 7. Plaintiff’s counsel seeks reimbursement for litigation costs in the amount of \$7,137.46, including \$5,175 for mediation fees. ROA 75 ¶ 28. Counsel should submit an invoice supporting the claimed mediation fee. Additionally, to the extent the mediation included plaintiff’s individual claims and settlement, as indicated by counsel (ROA 75 ¶ 8), why should aggrieved employees and the state, as opposed to plaintiff individually, bear that full cost? Costs for postage (\$31.38, \$2.07) should be removed as the court does not reimburse such costs. 8. Plaintiff’s counsel seeks attorneys’ fees totaling 40% of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys’ fees award that exceeds 30% of the gross settlement amount. Plaintiff’s counsel should address in the supplemental filing whether any such unique circumstances exist here. <u>As to the notice:</u> 9. The notice (ROA 75 Ex. 2A) should be revised consistent with the above. 10. Include the gross settlement amount, the amounts of attorneys’ fees and attorneys’ costs, the settlement administration fees, the net settlement amount and the amounts to be paid to the LWDA and the
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		Aggrieved Employees. 11. The same issue above applies to the term "Released Parties." <u>As to the proposed order:</u> 12. The proposed order (ROA 73) should be revised consistent with the above. 13. The document title (and footer) should be styled as a proposed order granting PAGA settlement approval and judgment. 14. Counsel's information should be removed from the caption page. 15. The settlement agreement and notice letter (in all languages) should be attached as exhibits to the proposed order and judgment. ¶¶ 1, 5. 16. Add "and the Administrator" between "Parties" and "shall." ¶ 1. 17. Include the release and when it is effective. 18. The proposed order and judgment should include a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has expired. The court holds final accounting hearings on Thursdays at 2:00 p.m. The proposed order and judgment shall state that counsel shall submit a final administrator's report at least 16 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval is continued to August 20, 2026 at 2:00 p.m. in Department CX102 to permit the parties to address and respond to the above issues. A supplemental brief shall be filed at least 16 court days before the hearing and shall address as necessary each of the above points. The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). The court further refers Class Counsel to the "Guidelines for Approval of Class Action Settlements & PAGA Settlements" posted on the Court's website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.
112	Interface Rehab, Inc. vs. 4545 Shelley Court Opco, LLC 2025-01501797	1. Application for Right to Attach Order/Writ of Attachment 2. Application for Right to Attach Order/Writ of Attachment 3. Application for Right to Attach Order/Writ of Attachment 4. Application for Right to Attach Order/Writ of Attachment 5. Application for Right to Attach Order/Writ of Attachment 6. Application for Right to Attach Order/Writ of Attachment

- 7. Application for Right to Attach Order/Writ of Attachment**
- 8. Application for Right to Attach Order/Writ of Attachment**
- 9. Application for Right to Attach Order/Writ of Attachment**
- 10. Application for Right to Attach Order/Writ of Attachment**
- 11. Application for Right to Attach Order/Writ of Attachment**
- 12. Application for Right to Attach Order/Writ of Attachment**
- 13. Application for Right to Attach Order/Writ of Attachment**
- 14. Application for Right to Attach Order/Writ of Attachment**
- 15. Application for Right to Attach Order/Writ of Attachment**
- 16. Application for Right to Attach Order/Writ of Attachment**
- 17. Application for Right to Attach Order/Writ of Attachment**
- 18. Application for Right to Attach Order/Writ of Attachment**
- 19. Application for Right to Attach Order/Writ of Attachment**
- 20. Application for Right to Attach Order/Writ of Attachment**

Plaintiff Interface Rehab, Inc. has filed applications for the issuance of right to attach orders (RTAO) and writs of attachments (WOA) against the following Defendants in the following amounts pursuant to Code of Civil Procedure section 483.010:

1. 991 Clyde Avenue Opco, LLC ("Clyde") - \$560,905.53 (ROA #74-75);
2. 4545 Shelley Court OPCO, LLC ("Shelley") - \$146,394.22 (ROA #79-80);
3. 6740 Wilbur Avenue OPCO, LLC d/b/a Park View Nursing and Subacute f/k/a West Valley Subacute and Nursing Center ("Wilbur") - \$319,826.22 (ROA #84-85);
4. S&F Market Street Health Care, LLC d/b/a Windsor Convalescent Center of North Long Beach ("S&F") - \$336,355.78 (ROA #89-90);
5. 1030 Warner Avenue I OPCO LLC d/b/a South Coast Post-Acute ("Warner") - \$493,027.40 (ROA #94-95);
6. Windsor Cheviot Hills, LLC ("Windsor Cheviot") - \$528,964.76 (ROA #99-100);
7. Windsor Country Drive Care Center, LLC ("Windsor Country") - \$403,753.09 (ROA #104-105);
8. Windsor Cypress Gardens Healthcare, LLC ("Windsor Cypress") - \$399,025.23 (ROA #109-110);
9. Windsor El Camino Care Center, LLC ("Windsor El Camino") - \$263,061.43 (ROA #114-115);

10. Windsor Elk Grove Care Center and Rehabilitation, LLC ("Windsor Elk Grove") - \$413,925.72 (ROA #119);
11. Windsor Elmhaven Care Center, LLC ("Windsor Elmhaven") - \$129,108.88 (ROA #124-125);
12. Windsor Hampton Care Center, LLC ("Windsor Hampton") - \$235,810.48 (ROA #129-130);
13. Windsor Hayward Estates ("Windsor Hayward") - \$447,682.89 (ROA #134-135);
14. Windsor Monterey Care Center, LLC ("Windsor Monterey") - \$78,599.35 (ROA #139-140);
15. Windsor Rosewood Care Center, LLC ("Windsor Rosewood") - \$266,975.35 (ROA #144-145);
16. Windsor Sacramento Estates, LLC ("Windsor Sacramento") - \$36,592.85 (ROA #149-150);
17. Windsor Skyline Care Center ("Windsor Skyline") - \$254,829.37 (ROA #154-155);
18. Windsor Terrace Healthcare, LLC ("Windsor Terrace") - \$533,612.70 (ROA #159-160);
19. Windsor The Ridge Rehabilitation Center, LLC ("Windsor Ridge") - \$269,897.23 (ROA #164-165); and
20. Windsor Vallejo Care Center, LLC ("Windsor Vallejo") - \$639,058.49 (ROA #169-170).

Application no. 10 is DENIED, application nos. 1-2, 4-9, 11-13, and 15-20 are GRANTED IN PART, and application nos. 3 and 14 are GRANTED, ON THE CONDITION that Plaintiff file an undertaking in the amount of \$10,000 as to each application granted. (Code Civ. Proc. §§ 484,090, subd. (a)-(b), 489.210, 489.220.) Within five (5) court days of this ruling, Plaintiff shall submit a Judicial Council form AT-120 for each application granted for the Court's review and signature.

As a threshold matter, the Court **DEEMS AS MOOT** Plaintiff's request for "ex parte" relief in connection with these applications. Although Plaintiff checked the boxes in ¶¶ 1 and 13 for "ex parte" applications when completing Judicial Council form AT-105, Plaintiff also filed and served notices of hearing using Judicial Council form AT-115 for each application. Under CCP section 485.010(a), an RTAO/WOA may be issued "if it appears from facts shown by affidavit that great or irreparable injury would result to the plaintiff if issuance of the order were delayed until the matter could be heard *on notice*." (Emphasis added.) Given that the applications and notices of hearing were filed and served on 12/8 to 12/11/2025 and the hearings were originally set for five to six months later on in May and June 2026, Plaintiff does not appear to seek "ex parte" relief.

Under CCP section 484.090, subdivision (a), following a hearing, a court shall issue an RTAO/WOA if it finds all of the following:

- (1) The claim upon which the attachment is based is one upon which an attachment may be issued;
- (2) The plaintiff has established the probable validity of the claim upon which the attachment is based;
- (3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based; and
- (4) The amount to be secured by the attachment is greater than zero.

The plaintiff bears the burden of proving these elements as to its entitlement to the writ of attachment. (*Kemp Bros. Construction, Inc. v. Titan Electric Corp.* (2007) 146 Cal.App.4th 1474, 1481; *Loeb & Loeb v. Beverly Glen Music* (1985) 166 Cal.App.3d 1110, 1116.)

1. Type of Claim Subject to Attachment

A claim upon which an attachment may be issued is a claim (1) for money based upon a contract, express or implied, (2) of a fixed or readily ascertainable amount not less than \$500, (3) either unsecured, or secured by personal property but not real property (including fixtures), and (4) that is a commercial claim. (CCP, § 483.010; see also *Pech v. Morgan* (2021) 61 Cal.App.5th 841, 854 [“Provisional relief in the form of an attachment is available for money claims based on breach of contract”].)

Here, given that Plaintiff’s claims are based on payments owed under the parties’ commercial contract and the claims are unsecured, these elements are indisputably met except that Defendants contend that the amount of the claim is not “fixed or readily ascertainable because it is dependent on various adjustments and payments identified in the fee schedule that has not been explained by Plaintiff.” (ROA #248-253, 255 [Opps.] at p. 7.)

To be a “readily ascertainable” amount, the damages need not be liquidated, but they must be “readily ascertainable by reference to the contract and the basis of the computation of damages appears to be reasonable and definite.” (*CIT Group/Equipment Financing, Inc. v. Super DVD, Inc.* (2004) 115 Cal.App.4th 537, 540, internal quotes omitted.) “[I]t is not necessary that the amount owed appear on the face of the contract”; rather, all that is required is that “the contract sued on must furnish a standard by which the amount due may be clearly ascertained and there must exist a basis upon which the damages can be determined by proof.” (*Id.*, internal quotes omitted.)

Importantly, “uncertainty as to the specific amount of damages is not a basis to deny attachment.” (*Id.*, citing *Lewis v. Steifel* (1950) 98 Cal.App.2d 648, 650 [“merely because the amount is uncertain ‘consisting of damages to be proven at the trial, is no reason why an attachment may not issue where, as here, such damages are easily ascertainable according to fixed standards supplied by the contract or the law acting upon it’”]; see also *Bringas v. Sullivan* (1954) 126 Cal.App.2d 693, 699 [same].)

Here, as Defendants acknowledge, the parties’ agreements include a fee schedule. That schedule sets forth the applicable standards by which the amount due may be clearly ascertained. Thus, the contracts sued on furnish the applicable standards for determining the amounts due, and there exists a basis upon which the damages can be determined by proof. Although Defendants dispute the amounts charged by Plaintiff, that creates only uncertainty as to the specific amount of damages, which is not a basis to deny attachment.

Therefore, the Court finds that Plaintiff’s claims are ones upon which an attachment may be issued.

2. Probable Validity

“A claim has ‘probable validity’ if it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (CCP, § 481.190.) Plaintiff must “at least establish a prima facie case.” (*Pech v. Morgan* (2021) 61 Cal.App.5th 841, 855.) “The application shall be supported by an affidavit showing that the plaintiff on the facts presented would be entitled to a judgment on the claim upon which the attachment is based.” (CCP, § 484.030.)

The elements to a cause of action for breach of contract are (1) the existence of a contract, (2) the plaintiff's performance or excuse for nonperformance, (3) the defendant's breach, and (4) resulting damages. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

Here, Plaintiff has satisfied its initial burden to establish a prima facie case for the probable validity of a contract claim as to each of the Defendants involved in these applications. In support of each application, Plaintiff submitted the declaration of its Chief Financial Officer, attaching a copy of the parties' contract; attesting that Plaintiff performed the contract and attaching copies of monthly invoices Plaintiff sent to Defendants reflecting the work performed and the amount owed; and attesting that Defendant has failed to pay the invoices, which has resulted in damages to Plaintiff.

Defendants nevertheless contend that Plaintiff's claims lack probable validity based on a single, conclusory statement in the declaration of Katie Jeffrey, the Vice President of Rehab Services of NewGen Administrative Services, an administrative services company that is contracted with Defendants that "Plaintiff was ill-prepared, under-staffed, and under-equipped to adequately provide the services that it promised under the Services Agreement." (Jeffrey Decs. at ¶ 5.)

A defendant's opposition must "be accompanied by an affidavit supporting any factual issues raised and points and authorities supporting any legal issue raised." (CCP, § 484.060, subd. (a).) "The facts stated in each affidavit filed pursuant to this title shall be set forth with particularity." (CCP, § 482.040.) "[T]he affiant or declarant must show actual, personal knowledge of the relevant facts, rather than the ultimate facts commonly found in pleadings, and such evidence must be admissible and not objectionable." (*Lydig Construction, Inc. v. Martinez Steel Corp.* (2015) 234 Cal.App.4th 937, 944.)

"In determining the probable validity of a claim where the defendant makes an appearance, the court must consider the relative merits of the positions of the respective parties and make a determination as to the probable outcome of the litigation." (*Loeb & Loeb, supra*, 166 Cal.App.3d at p. 1120; see also *Lorber Industries v. Turbulence, Inc.* (1985) 175 Cal.App.3d 532, 535 ["Attachment is a prejudgment remedy which requires a court to make a preliminary determination of the merits of a dispute"].)

Here, Jeffrey's conclusory statement about Plaintiff's substandard performance is not supported by admissible facts or any documentary evidence showing that Defendants raised such performance issues or otherwise objected to Plaintiff's invoices at or near the time the services were rendered before the instant action was filed. (See *Pech, supra*, 61 Cal.App.5th at p. 856 [affirming granting of application for RTAO for a claim based on a legal services fee agreement where "the undisputed evidence proved defendants did not object to a single invoice until after [Plaintiff] had indicated he intended to withdraw as counsel"]; *Loeb & Loeb, supra*, 166 Cal.App.3d at p. 1120 [finding declarant's "credibility . . . compromised by his statement that he never received computer print-outs" when "[t]he monthly letters refer to it and he never complained of non-receipt until after this action"].) Furthermore, as to application nos. 8-20, Jeffrey provides the additional statement that "[d]ue to the ongoing quality of performance, Defendants had to replace and transfer providers in June and July of 2025." See, e.g., ROA 305 ¶ 6. This addition does not, however, help defendants' argument. While Jeffrey states it became apparent plaintiff's services were inadequate in November 2024, she again fails to identify any complaints made about those services and admits defendants continued to receive those services through at least June 2025. *Id.* ¶¶ 5-6.

Overall, based on the evidence submitted by both parties, the Court finds that Plaintiff has satisfied its initial burden to establish a prima facie case for the probable validity of its contract claims against Defendants, while Defendants have failed to present sufficient evidence to support a contrary finding.

3. Proper Purpose

Plaintiff adequately supported each application with Vu's declaration that "[t]he attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based." (CCP, § 484.090, subd. (a)(3); Vu Decls., ¶ 18.) Defendants do not contend otherwise. Therefore, this element is indisputably met.

4. Amount to Be Secured by Attachment

The amount to be secured by an attachment is "the amount of the defendant's indebtedness claimed by the plaintiff." (CCP, §§ 483.015, subd. (a), 482.110, subd. (a)(1).)

Based on the invoices submitted by Plaintiff in support of its applications, Plaintiff has adequately shown that "[t]he amount to be secured by the attachment is greater than zero." (CCP, § 484.090, subd. (a)(4).) However, for some of the applications, Plaintiff submitted some incomplete invoices, and for other applications, the sum total of the invoices submitted by Plaintiff does not equal the amount claimed by Plaintiff in its application or the sum total alleged in Vu's declaration.

More specifically, each of Vu's supporting declarations in support of Plaintiff's applications stated a specific amount as the "the sum total owed to Interface by [each] Defendant . . . , exclusive of interest, fees, and costs" "[a]s of June 30, 2025." (Vu Decls., ¶ 7.) Those amounts match the amounts requested in Plaintiff's applications.

But Vu's declarations also purported to attach "as Exhibit '2' . . . true and correct copies of the unpaid and outstanding invoices" for each defendant to support the sum total alleged. (Vu Decls., ¶ 4.) Yet several invoices were incomplete and/or the sum total of the actual invoices do not equal the amount alleged by Vu or requested by Plaintiff.

The below chart summarizes the amount requested by Plaintiff and the amount actually established by Plaintiff's documentary evidence, and also identifies the date of those invoices that were submitted but incomplete:

Defendant	Alleged Sum Total Owed by Defendant Exclusive of Interest, Fees, and Costs Requested by Plaintiff	Date of Incomplete Invoice(s) Submitted as Part of Vu Decl., Exh. 2	Sum Total of Complete Invoices Submitted
Clyde	\$560,905.53	2/1/2025, 3/1/2025, 4/1/2025, 5/1/2025	\$98,896.91

Shelley	\$146,394.22		\$133,785.29
Wilbur	\$319,826.22	4/1/2025	\$321,736.98
S&F Market	\$336,355.78		\$277,526.94
Warner	\$493,027.40	4/9/2025, 5/1/2025	\$286,800.49
Windsor Cheviot	\$528,964.76	5/6/2025	\$432,376.70
Windsor Country	\$403,753.09		\$401,419.07
Windsor Cypress	\$399,025.23	2/1/2025, 4/1/2025	\$318,440.16
Windsor El Camino	\$263,061.43	2/6/2025, 4/1/2025	\$158,125.89
Windsor Elk Grove	\$413,925.72		\$411,434.48
Windsor Elmhaven	\$129,108.88	5/1/2025	\$111,519.99
Windsor Hampton	\$235,810.48	3/1/2025	\$147,643.89
Windsor Hayward	\$447,682.89	5/1/2025, 4/1/2025	\$264,823.84
Windsor Monterey	\$78,599.35	4/1/2025	\$89,748.06
Windsor Rosewood	\$266,975.35	5/5/2025	\$161,977.36
Windsor Sacramento	\$36,592.85		\$36,167.01
Windsor Skyline	\$254,829.37		\$209,215.81
Windsor Terrace	\$533,612.70	5/1/2025, 31/2025, 2/1/2025, 4/1/2025	\$181,842.76
Windsor Ridge	\$269,897.23		\$268,425.36
Windsor Vallejo	\$639,058.49		\$635,317.60

The Court also notes that while “[t]he plaintiff’s application . . . may include an estimate of the costs and allowable attorney’s fees” (CCP, § 482.110, subd. (a); see also CCP, § 483.015, subd. (a)(2)), here, Plaintiff’s application did not request any such amounts (see Pl.’s Apps. at ¶¶ 8.a. & 8.b. [although Judicial Council form provides specific spaces for listing the amount of estimated costs and estimated allowable attorney fees, these spaces were left blank]).

Accordingly, based on the documentary evidence submitted by Plaintiff, **the Court GRANTS Plaintiff’s applications for RTAOs and WOAs only in the following amounts:**

1. 991 **Clyde** Avenue Opco, LLC - **\$98,896.91**;
2. 4545 **Shelley** Court OPCO, LLC - **\$133,785.29**;
3. 6740 **Wilbur** Avenue OPCO, LLC d/b/a Park View Nursing and Subacute f/k/a West Valley Subacute and Nursing Center - **\$319,826.22**;
4. **S&F** Market Street Health Care, LLC d/b/a Windsor Convalescent Center of North Long Beach - **\$277,526.94**;
5. 1030 **Warner** Avenue I OPCO LLC d/b/a South Coast Post-Acute - **\$286,800.49**;

6. **Windsor Cheviot Hills, LLC - \$432,376.70;**
7. **Windsor Country Drive Care Center, LLC - \$401,419.07;**
8. **Windsor Cypress Gardens Healthcare, LLC - \$318,440.16;**
9. **Windsor El Camino Care Center, LLC - \$158,125.89;**
11. **Windsor Elmhaven Care Center, LLC - \$111,519.99;**
12. **Windsor Hampton Care Center, LLC - \$147,643.89;**
13. **Windsor Hayward Estates - \$264,823.84;**
14. **Windsor Monterey Care Center, LLC - \$78,599.35;**
15. **Windsor Rosewood Care Center, LLC - \$161,977.36;**
16. **Windsor Sacramento Estates, LLC - \$36,167.01;**
17. **Windsor Skyline Care Center - \$209,215.81;**
18. **Windsor Terrace Healthcare, LLC - \$181,842.76;**
19. **Windsor The Ridge Rehabilitation Center, LLC - \$268,425.36;** and
20. **Windsor Vallejo Care Center, LLC - \$635,317.60.**

As to application no. 10 (Windsor Elk Grove), plaintiff has filed the application (ROA 119) without a corresponding notice. Defendant asserts the application must be denied based on this procedural defect. ROA 305 § III(A). The Court agrees. The attachment statutes are to be strictly construed, and a notice must accompany the application. CCP § 484.040 ("defendant shall be served with all of the following...notice of application and hearing..."); *Pacific Decision Sciences Corp. v. Super. Ct.* (2004) 121 Cal.App.4th 1100, 1106 ("[a]ttachment [l]aw statutes are subject to strict construction"). Plaintiff fails to address this challenge in its reply brief. ROA 321. Accordingly, application no. 10 is denied.

5. Undertaking

An undertaking by plaintiff in support of any writ of attachment is mandatory; any writ issued without the required bond or undertaking is void. (CCP, § 489.210; *Vershow v. Reiner* (1991) 231 Cal.App.3d 879, 882.)

The amount of the bond is set by statute at \$10,000. (CCP, § 489.220, subd. (a).) However, "[i]f, upon objection to the undertaking, the court determines that the probable recovery for wrongful attachment exceeds the amount of the undertaking, it shall order the amount of the undertaking increased to the amount it determines to be the probable recovery for wrongful attachment if it is ultimately determined that the attachment was wrongful." (CCP, § 489.220, subd. (b).)

Here, Plaintiff's applications attest that no undertaking has been filed. Defendants' oppositions request that Plaintiff file an undertaking equal to at least 50% of the amount of the attachment, but Defendants have not even attempted to show what the amount of probable recovery for wrongful attachment is, let alone why it would equal 50% of the amount of the attachment requested by Plaintiff.

Accordingly, **Plaintiff must file the statutory minimum \$10,000 undertaking as to each application granted before the writ shall issue.**

Plaintiff to give notice.

113	Balt USA, LLC vs. Treadstone Medical LLC 2021- 01237081	1. Motion for Summary Judgment and/or Adjudication 2. Motion for Summary Judgment and/or Adjudication <u>A. The Braided Stent</u> Defendants Randall Takahashi, David Ferrera, Dawson Le, Treadstone Medical LLC, M4D LLC, Infinity Neuro LLC, Vtail Medical, LLC, Sonorous Neurovascular, Inc., and RC Medical, LLC move for summary adjudication against plaintiff Balt USA, LLC as to the following issues: (1) because the braided stent was conceived, created, and invented after defendant Randall Takahashi left Balt, he had no duty to disclose or assign it to Balt (cause of action no. 4); (2) because the braided stent was conceived, created, and invented after defendant Randall Takahashi left Balt, he had no contractual duty under this employment agreement to assign it to Balt (cause of action no. 8); (3) absent a lawful claim to the braided stent, it cannot support Balt’s cause of action nos. 5-7, and 9-10. <i>For the following reasons, defendants’ motion is DENIED.</i> Legal Authority A defendant seeking summary judgment bears its burden of showing that a cause of action has no merit if the defendant shows that one or more elements of the cause of action cannot be established, or that the defendant has a complete defense to the cause of action. Cal. Civ. Proc. Code § 437c(p)(2); Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850-51. If a defendant does not meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840. If the defendant meets this initial burden, the burden shifts to the plaintiff to produce evidence demonstrating the existence of a triable issue of material fact. Cal. Civ. Proc. Code § 437c(p)(2); Aguilar, 25 Cal.4th at 850-51. A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends the cause of action has no merit, there is no affirmative defense to the cause of action, there is no merit to an affirmative defense as to any cause of action, there is no merit to a claim for damages, as specified in Civil Code section 3294, or that one or more defendants either owed or did not owe a duty to the plaintiff. Civ. Proc. Code § 437c(f)(l). A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Id. A motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. Choochagi v. Barracuda Networks, Inc. (2020) 60 Cal.App.5th 444, 453. The moving party’s evidence is to be strictly construed, while the opposing party’s evidence is to be liberally construed. Johnson v. Super. Ct. (2006) 143 Cal.App.4th 297, 308; see also Los Angeles Unified School Dist. v. Torres Construction Corp. (2020) 57 Cal.App.5th 480, 492 (declarations of the moving party are strictly construed, those of the opposing party are liberally construed, and doubts as to whether a summary judgment should be granted must be resolved in favor of the opposing party). The trial court may not weigh the evidence or evaluate credibility. Binder v. Aetna Life Insurance Co. (1999) 75 Cal.App.4th 832, 840. “The court must consider not only the bare evidence, but also the reasonable inferences deducible from the evidence, and determine
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whether the evidence is sufficient to support a potential judgment in favor of the opposing party.” Id.

Procedural Dispute

The parties initially dispute whether the motion is procedurally proper because it does not purport to “completely dispose[] of a cause of action.” C.C.P. § 437c, sub. (f)(1). Defendants argue a party may move for summary adjudication challenging separate and distinct wrongful acts even though they are, as here, combined with other wrongful acts alleged in the same cause of action. Specifically, defendants’ aim the motion at the alleged misconduct related to the braided stent and cause of action nos. 4-10, to the extent those claims rely upon the alleged misconduct related to the braided stent. See TAC ¶¶ 101-111.

Among other things, plaintiff’s breach of fiduciary duty claim (cause of action no. 4) concerns the corporate opportunities allegedly usurped by defendants. TAC ¶¶ 137-141. Among those opportunities are several “undisclosed inventions,” which include the braided stent. Id. ¶¶ 87-119. While the court understands plaintiff’s argument the product development projects were related and concern some common facts, they appear sufficiently distinct such that they can be considered separate wrongful acts for which summary adjudication is available despite their inclusion in the same cause of action. As explained in *Lilienthal & Fowler v. Superior Ct.* (1993), the court finds the interpretation of the code that would permit such motions best serves the legislative purpose of achieving time and cost savings. 12 Cal. App. 4th 1848, 1854 (“To rule otherwise would defeat the time and cost saving purposes of the amendment and allow a cause of action in its entirety to proceed to trial even where, as here, a separate and distinct alleged obligation or claim may be summarily defeated by summary adjudication.”) In other words, each of the allegedly usurped corporate opportunities carried with it a corresponding obligation such that the court may treat them separately for purposes of summary adjudication. While the court is aware *Lilienthal* has been questioned and distinguished, the court finds no basis to do so here as none of the authorities appear analogous. See, e.g., *Bagley v. TRW, Inc.* (1999) 73 Cal. App. 4th 1092, 1095 n.2 (dicta in case concerning substantively duplicative summary adjudication motions); *Catalano v. Superior Ct.* (2000) 82 Cal. App. 4th 91, 93-94 (summary adjudication of four of five issues supporting punitive damages was prohibited).

Merits

ISSUE NO. 1: Because the braided stent was conceived, created, and invented after defendant Randall Takahashi left Balt, he had no duty to disclose or assign it to Balt.

Defendant’s evidence in support of this issue includes Statement of Undisputed Material Fact (“SUF”) no. 9, which states “[a] braided stent was invented by Tuan Ngo in July and August 2019 when he was working from home.” ROA 1822. Defendants’ supporting evidence is the deposition testimony of Tuan Ngo and the declaration of Randall Takahashi. Id. Ngo testifies he made and photographed a prototype braided stent in July 2019. Takahashi states Ngo contacted him about the stent at this time, was shown the prototype and the photographs taken of it by NGO, and that Ngo asked for his assistance with engineering and design. Plaintiff does not dispute Ngo was not employed by Balt after March 1, 2019 (SUF 2) and that Takahashi was not employed by Balt

	after March 29, 2019 (SUF 22). Accordingly, this evidence is sufficient to shift the burden to plaintiff to show that triable issues of material facts exist. Plaintiff disputes the braided stent was created by Ngo (SUF 9). Plaintiff's evidence consists of various documents and deposition testimony. Plaintiff argues the evidence shows Dawson Le made prototype of the braided stent in 2018, while still employed by Balt. That evidence includes ROA 1812 Ex. 83, which plaintiff describes as "a true and correct copy of the document marked as Exhibit 313 during the deposition of Randall Takahashi, taken on November 6, 2025." This document has not, however, as defendants object, been authenticated and plaintiff offers no testimony or other evidence to explain its content, which appears to consist of a series of text messages between defendant David Ferrera and three other individuals in 2018. Balt's Statement of Additional Material Facts ("SAF") no. 19. Absent authentication, this document is inadmissible and will not be considered. Evid. Code §§ 250, 1401(a). As to the other evidence plaintiff offers to dispute SUF no. 9, the court finds the evidence raises a triable issue regarding the all-important timing issue. Plaintiff's evidence provided in response shows several inconsistencies with SUF 9. ROA 1822. Specifically, while Ngo testified he completed the prototype on July 28, 2019, and only later sought Takahashi's assistance, defendant M4D's patent attorney, Peter Gluck, invoiced Takahashi for the provisional patent application for the braided stent on July 22, 2019, nearly a week before Ngo states he completed the prototype. Id. The date of the patent application invoice from Gluck is also inconsistent with Takahashi's testimony that as of the end of July or early August 2019, the only thing Ngo had was a "conceptual idea" and a "pattern on paper," not a "stent." Id. Gluck also testified that he believed the braided stent would be assigned to Balt if it became "important." Id. Finally, Ngo's invention of the braided stent in 2019 is inconsistent with defendant M4D's 2019 R&D Tax Credit Study, which completely omits Ngo from the personnel roster, as reflected in the "Wage Expense Detail." Id. Accordingly, as plaintiff has raised a triable issue of fact in the separate statement, the motion must be denied as to Issue No. 1. Additionally, as defendants have conceded all facts in its separate statement (ROA 1536) are material to all three issues they seek to summarily adjudicate, and plaintiff has raised a triable issue, the motion must be denied as to Issue Nos. 2 (Because the braided stent was conceived, created, and invented after defendant Randall Takahashi left Balt, he had no contractual duty under this employment agreement to assign it to Balt.) and 3 (Absent a lawful claim to the braided stent, it cannot support Balt's cause of action nos. 5-7, and 9-10.) as well. See, e.g., <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 252 (separate statement "'effectively concedes the materiality of whatever facts are included. Thus, if a triable issue is raised as to any of the facts in [the] separate statement, the motion must be denied[.]'"). Evidentiary Objections Plaintiff's evidentiary objection no. 4, as to Takahashi Decl. ¶¶ 18-19 is overruled. ROA 1815. All other objections were not material to the disposition of the motion. Civ. Proc. Code § 437c(q). Defendants' evidentiary objection no. 1 is sustained. Request for Judicial Notice
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To the extent a request for judicial notice is contained within a separate statement (SUF nos 29-30), the request is improper and is denied. "Any request for judicial notice must be made in a separate document listing the specific items for which notice is requested and must comply with rule 3.1306(c)." CRC, Rule 3.1113.

Plaintiff to give notice.

B. catheter access puncture tool

Defendants Randall Takahashi, David Ferrera, Dawson Le, Treadstone Medical LLC, M4D LLC, Infinity Neuro LLC, Vtail Medical, LLC, Sonorous Neurovascular, Inc., and RC Medical, LLC move for summary adjudication against plaintiff Balt USA, LLC as to the following issues: (1) the catheter access puncture tool did not constitute a corporate opportunity for Balt, and the Individual Defendants did not have a duty to disclose or assign this medical device to Balt (cause of action no. 4); (2) the catheter access puncture tool was not conceived by the Individual Defendants while they were employed by Balt, and had been abandoned, so they were not contractually obligated to disclose and assign their rights and interests in it to Balt under their employment agreements (cause of action no. 7); (3) defendants Takahashi and Le did not conceive or invent the catheter access puncture tool while employed by Balt, and had no duty to disclose or assign it to Balt (cause of action no. 8); and (4) absent a lawful claim to the catheter access puncture tool, it cannot be a basis for Balt's cause of action nos. 5-6, and 9-10.

For the following reasons, defendants' motion is DENIED.

Legal Authority

A defendant seeking summary judgment bears its burden of showing that a cause of action has no merit if the defendant shows that one or more elements of the cause of action cannot be established, or that the defendant has a complete defense to the cause of action. Cal. Civ. Proc. Code § 437c(p)(2); Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850-51.

If a defendant does not meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840. If the defendant meets this initial burden, the burden shifts to the plaintiff to produce evidence demonstrating the existence of a triable issue of material fact. Cal. Civ. Proc. Code § 437c(p)(2); Aguilar, 25 Cal.4th at 850-51.

A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends the cause of action has no merit, there is no affirmative defense to the cause of action, there is no merit to an affirmative defense as to any cause of action, there is no merit to a claim for damages, as specified in Civil Code section 3294, or that one or more defendants either owed or did not owe a duty to the plaintiff. Civ. Proc. Code § 437c(f)(1). A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Id. A motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. Choochagi v. Barracuda Networks, Inc. (2020) 60 Cal.App.5th 444, 453.

The moving party's evidence is to be strictly construed, while the opposing party's evidence is to be liberally construed. Johnson v. Super. Ct. (2006) 143

Cal.App.4th 297, 308; see also Los Angeles Unified School Dist. v. Torres Construction Corp. (2020) 57 Cal.App.5th 480, 492 (declarations of the moving party are strictly construed, those of the opposing party are liberally construed, and doubts as to whether a summary judgment should be granted must be resolved in favor of the opposing party). The trial court may not weigh the evidence or evaluate credibility. Binder v. Aetna Life Insurance Co. (1999) 75 Cal.App.4th 832, 840. "The court must consider not only the bare evidence, but also the reasonable inferences deducible from the evidence, and determine whether the evidence is sufficient to support a potential judgment in favor of the opposing party." Id.

Procedural Dispute

The parties initially dispute whether the motion is procedurally proper because it does not purport to "completely dispose[] of a cause of action." C.C.P. § 437c, sub. (f)(1). Defendants argue a party may move for summary adjudication challenging separate and distinct wrongful acts even though they are, as here, combined with other wrongful acts alleged in the same cause of action. Specifically, defendants' aim the motion at the alleged misconduct related to the catheter access puncture tool ("puncture tool") and cause of action nos. 4-10, to the extent those claims rely upon the alleged misconduct related to the puncture tool. See TAC ¶¶ 96-100.

Among other things, plaintiff's breach of fiduciary duty claim (cause of action no. 4) concerns the corporate opportunities allegedly usurped by defendants. TAC ¶¶ 137-141. Among those opportunities are several "undisclosed inventions," which include the puncture tool. Id. ¶¶ 87-119. While the court understands plaintiff's argument the product development projects were related and concern some common facts, they appear sufficiently distinct such that they can be considered separate wrongful acts for which summary adjudication is available despite their inclusion in the same cause of action. As explained in Lilienthal & Fowler v. Superior Ct. (1993), the court finds the interpretation of the code that would permit such motions best serves the legislative purpose of achieving time and cost savings. 12 Cal. App. 4th 1848, 1854 ("To rule otherwise would defeat the time and cost saving purposes of the amendment and allow a cause of action in its entirety to proceed to trial even where, as here, a separate and distinct alleged obligation or claim may be summarily defeated by summary adjudication.") In other words, each of the allegedly usurped corporate opportunities carried with it a corresponding obligation such that the court may treat them separately for purposes of summary adjudication. While the court is aware Lilienthal has been questioned and distinguished, the court finds no basis to do so here as none of the authorities appear analogous. See, e.g., Bagley v. TRW, Inc. (1999) 73 Cal. App. 4th 1092, 1095 n.2 (dicta in case concerning substantively duplicative summary adjudication motions); Catalano v. Superior Ct. (2000) 82 Cal. App. 4th 91, 93-94 (summary adjudication of four of five issues supporting punitive damages was prohibited).

Merits

ISSUE NO. 1: The catheter access puncture tool did not constitute a corporate opportunity for Balt, and the Individual Defendants did not have a duty to disclose or assign this medical device to Balt.

Defendants' facts in support of this issue includes, among others, Statement of Undisputed Material Fact ("SUF") 23, which states "[d]uring the entire time that David Ferrera assisted Dr. Tateshima with the potential development of the access puncture tool, Balt limited the scope of its business to "go get the clot."

ROA 1865. Defendants' supporting evidence includes the declarations of David Ferrera and Randall Takahashi. Id. Ferrera, Chief Technology Officer of Balt at the time of his departure in May 2019, testifies he understood the limited scope of Balt's business from a Balt "business strategy." ROA 1612 ¶ 19. However, defendants provide no authority that a stated business strategy legally defines the line of business. *Broz v Cellular Info. Sys.* (1996) 673 A.2d 148, 154-155 expressly did not reach the question whether business strategy was even "relevant" to that determination. *Broz, supra*, 673 A.2d at 156 n.7. Ferrera also testifies Balt's "business opportunities were limited to medical products that are designed to treat neurovascular conditions," never expressed interest in developing general surgical products to facilitate catheter entry, such as the puncture tool, and has never developed any such products." ROA 1612 ¶ 19. Takahashi testifies similarly, i.e., Balt's "stated mission" was "go get the clot," its mission was to treat neurovascular conditions of the brain, and Balt had "no interest" in developing devices like the puncture tool. ROA 1614 ¶ 5. SUF 24-26 are substantially similar to SUF 23 and rely on the same evidence. However, neither Ferrera nor Takahashi provide adequate foundation to the extent they purport to speak for Balt as a whole never expressing interest in such development.

Defendants' facts in support of this issue also include SUF 47, which states "Ujwal Jalgaonkar Vice President of Research and Development for Balt USA LLC testified at his deposition that the puncture access tool was not within the scope of the business of Balt." ROA 1865. SUF 60 is substantially similar and relies upon the same evidence. Defendants mischaracterize Jalgaonkar's testimony. ROA 1623 Ex. A. While it is undisputed there was no active program to develop a puncture tool (SUF 61), he testified Balt "evaluate[s] the opportunities as they come" and "look[s] at the opportunity as it comes, the technology that we have, and make those discussions." ROA 1623 Ex. A. He also explained a puncture tool was related in that Balt "does the whole procedure...[t]o introduce anything into the vascular, we need a tool for it... [a]nd is that a part of a tool set that is used for procedures that we provide devices? Yes." Id. Defendants' evidence purports to include additional testimony from Jalgaonkar on this issue (SUF 55-57, 59), but the cited transcript excerpts have not been provided. See ROA 1623 Ex. A.

Defendants also rely upon the deposition testimony of current Balt employee Fred Gunderman, hired in 2018 as Vice President of Clinical and Medical Affairs. SUF 62. Defendants' facts supported by Gunderman are largely undisputed. SUF 64-69. Balt's "main focus" is medical devices to treat the vascular system and Gunderman did not recall discussions of Balt developing a puncture tool. SUF 64-69. However, Gunderman disagreed with the limitation that Balt's "main focus" was treating "hemorrhagic conditions involving the brain" and explained its main focus was "neurovascular diseases and adjacent disease states," including the "peripheral vascular" area. ROA 1623 Ex. B.

Based on the above, the court finds the evidence presented by defendants insufficient to find the puncture tool is outside Balt's line of business. The evidentiary burden does not shift to plaintiff, and the motion is denied as to Issue No. 1.

ISSUE NO. 2: The catheter access puncture tool had not been conceived by the Individual Defendants while they were employed by Balt, and had been abandoned, and as a result the Defendants were not contractually obligated to disclose and assign their rights and interests in the catheter access puncture tool to Balt pursuant to their employment agreements.

	Defendants’ facts in support of this issue include, among others, Statement of Undisputed Material Fact (“SUF”) 39, which states “David Ferrera, Dawson Le, and Randall Takahashi did not play any role in developing the access puncture tool, and Takahashi and Ferrera’s names only appeared on patent applications as a favor to Dr. Tateshima since he could not sign patent applications for patents due to his position at UCLA Medical Center.” ROA 1865. Defendants’ supporting evidence includes the declarations of Satoshi Tateshima and David Ferrera. Id. As worded, SUF 39 is substantively identical to statements made in both Tateshima’s (ROA 1615 ¶ 37) and Ferrera’s (ROA 1612 ¶ 27) declarations. Accordingly, this evidence is sufficient to shift the burden to plaintiff to show that triable issues of material fact exist. Plaintiff disputes that individual defendants were not involved in the development of the puncture tool. See SUF 39; Balt’s Statement of Additional Material Facts (“SAF”) 3-11. ROA 1865. On February 5, 2019, the evidence shows Tateshima emailed Ferrera and patent attorney Peter Gluck the “prototype pictures and idea sketch figures” for the puncture tool. SAF 3. The next day, Ferrera forwarded Tateshima’s email and attachments to Yang, Takahashi, and Le (all employed by Balt at the time) with the message “[m]ore details from Satoshi on his idea. Let’s discuss.” Id. On February 12, 2019, Ferrera responded to Tateshima stating “[t]he puncture dilator appears easier to manufacture. One piece insert molded. What length would be required?” SAF 4. Ferrera also requested to observe a demonstration of the device. Id. Additional emails were exchanged between Ferrera and Tateshima in March 2019 concerning the design and patent application for the puncture device. SAF 5. On March 20, 2019, Ferrera emailed Yang, Takahashi, Le (all employed by Balt at the time), and Gluck to schedule a meeting with Tateshima “to have him explain his design inputs so we can come up with the design for the device.” SAF 6. Viewing the evidence in the light most favorable to the party opposing summary adjudication as it must, plaintiff has raised a triable issue of fact, and it is for a jury to decide to what extent defendants were involved in the development of the puncture tool. That development of the puncture tool was abandoned and never produced for sale is immaterial. The court does not find the court of appeals case from Arizona persuasive and, to the extent the opinion equates abandonment of development prior to production with a lack of liability for breach of the duty of loyalty, the court disagrees with it. Taser International Inc. v. Ward (2010) 224 Ariz. 389. If anything, the case shows that the question whether development efforts were substantial enough for liability is a fact-specific question for jury and inappropriate for summary adjudication. Id. at 396. Relatedly, to the extent defendants argue nothing was invented and there was thus no property to assign, this incorrectly assumes all property is tangible. Accordingly, summary adjudication of Issue No. 2 is denied. ISSUE NOS. 3-4: As defendants have conceded all facts in their separate statement (ROA 1865) are material to all four issues they seek to summarily adjudicate, and plaintiff has raised a triable issue, the motion must be denied as to Issue Nos. 3-4 as well. See, e.g., Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, 252 (separate statement “effectively concedes the materiality of whatever facts are included. Thus, if a triable issue is raised as to any of the facts in [the] separate statement, the motion must be denied[.]”). Evidentiary Objections
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		Plaintiff's evidentiary objection no. 2, as to Ferrera Decl. ¶ 19, and objection no. 3, as to Takahashi Decl. ¶ 5, are sustained. ROA 1861. All other objections were not material to the disposition of the motion. Civ. Proc. Code § 437c(q). Plaintiff to give notice.
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